BRENDAN NGEHSI NEWANFORBI
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SUPERIOR COURT OF THE STATE OF CALIFORNIA,

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

PETITIONER'S NOTICE OF MOTION AND MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE
(Code Civ. Proc., § 1085; Pen. Code, § 679.10)

Date: January 8, 2027
Time: 9:00 a.m.
Dept.: 25
Hon. Jenna M. Whitman
Reservation ID: 958052306492
Action Filed: May 29, 2026

DRAFT — FOR PETITIONER'S REVIEW ONLY — NOT FILED — NOT SERVED — UNSIGNED. This draft supersedes the September 30, 2026 motion package for the same January 8, 2027 hearing. It incorporates the October 12, 2026 Verified Answer and the October 23, 2026 production, and follows the locked four-part skeleton in internal/docs/matter-20-serrato-whitman/10-skeleton.md plus the filled cells of 07-two-column-table.md . Filing/service deadline: December 11, 2026 (16 court days + 2 for e-service, CCP § 1005(b)). Before filing: (1) fill the verbatim April 20 letter quotations in § V.D from Petition Exhibit 1 (PDF p. 45); (2) supplement the declaration with production/Answer paragraphs; (3) update the proposed judgment and proposed writ to carry

BOTH primary and alternative relief; (4) confirm the January 8 setting and the briefing timetable; (5) verify the August 29 Order quotations against the stamped Order (carried here from the September 30 draft).

NOTICE OF MOTION AND MOTION

TO RESPONDENTS AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on January 8, 2027, at 9:00 a.m., or as soon thereafter as the matter may be heard, in Department 25 of the Alameda County Superior Court, Rene C. Davidson Courthouse, 1225 Fallon Street, Oakland, California, Petitioner Brendan Ngehsi Newanforbi will and hereby does move for judgment granting a peremptory writ of mandate on the First Cause of Action of the Petition for Writ of Mandate.

Primary relief. A writ commanding Respondent California Highway Patrol ("CHP") to set aside its April 20, 2026 denial and, within 30 days after service of the writ, to complete, sign, and deliver to Petitioner the Form I-918, Supplement B, U Nonimmigrant Status Certification requested on April 9, 2026.

Alternative relief. If the Court concludes that CHP must make the statutory determination in the first instance, a writ commanding CHP to set aside the denial, reconsider the request within 30 days in conformity with the Court's findings and Penal Code section 679.10, and file a return to the writ within 45 days. The 30-day period is a requested judicial remand term, not a statutory remand deadline; section 679.10, subdivision (j)'s original-request clock is distinct.

The motion is made under Code of Civil Procedure sections 1085, 1086, and 1088 and Penal Code section 679.10. Petitioner contends the present record establishes the statutory

predicates for certification and that, once those predicates are established, section 679.10, subdivision (g)(1) uses mandatory language. If the Court concludes a material factual issue remains, Petitioner requests that the Court determine the appropriate procedure under Code of Civil Procedure section 1090. Petitioner requests a nonjury merits determination and does not request a jury, while recognizing the Court's procedural authority under section 1090.

The motion is based on this notice and memorandum, the Declaration of Brendan Ngehsi Newanforbi (executed September 30, 2026, to be supplemented before filing with production/Answer paragraphs), the Verified Petition and its exhibits, the Notice of Lodging of the November 1, 2024 CHP dashcam recording filed September 8, 2026, the Court's August 29, 2026 Order Sustaining Demurrer In Part, Respondents' Verified Answer filed October 12, 2026, CHP's October 23, 2026 Production of Documents, Set One, the files and records of this action, and any evidence and argument properly received by the Court.

Court Reservation System Reservation ID: 958052306492.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

The Court has already framed the merits issue. In overruling CHP's demurrer to the First Cause of Action, the Court stated that if it credits Petitioner's showing "that neither he nor his vehicle smelled of alcohol, that he showed no signs of impairment in talking with the officers or in performing the physical field sobriety tests he agreed to perform, and that the arresting officers lied about it in their police report, it could reasonably find probable cause for arrest was lacking, which could support a finding that the CHP abused its discretion in refusing to certify Petitioners Form I-918." (Order Sustaining Demurrer In Part, Aug. 29, 2026 ("Order"), at p. 4.)

The present motion asks the Court to decide that surviving claim on the evidentiary record. The April 9 certification package included CHP's arrest-investigation report, Petitioner's transcript of CHP's dashcam recording, and CHP's Penal Code section 851.6 certificate; the underlying recording itself is lodged with the Court. The recording does not contain several material observations recited in the report. CHP's denial letter identifies only an asserted absence of qualifying criminal activity and does not identify lack of helpfulness as a reason for denial. Petitioner therefore requests a merits determination and a writ directing the statutory act if the Court finds the predicates established, or vacatur and remand in the alternative.

II. STATEMENT OF FACTS

A. The November 1, 2024 detention. Shortly before 1:00 a.m. on November 1, 2024, CHP officers approached Petitioner asleep in a parked, engine-off rental vehicle on the shoulder of eastbound Interstate 580 in Livermore, where he had pulled over because he was tired while traveling home to Stockton. (Pet. ¶ 34; Pet. Ex. 5; Newanforbi Decl. ¶¶ 3-4.) He had driven earlier from Oakland toward Stockton; no officer observed the vehicle moving or observed Petitioner driving. (Decl. ¶ 3; Pet. Ex. 6 [DS 367: "driving observed by this officer" unchecked; "driver admitted to driving" checked; citation on information and belief under Veh. Code § 40600].) He told the officers he had not been drinking. (Pet. Ex. 5 at p. 3; Pet. Ex. 6 [pre-FST interview: "What have you been drinking? Nothing"].) An empty Mike's Hard Lemonade can was found in the vehicle; Petitioner denied drinking from it. (Pet. Ex. 5 at pp. 4-6; Pet. ¶ 47.) A cup in the vehicle was examined on the recording and identified aloud by an officer as urine. (Pet. Ex. 5 at 00:58:51–00:59:05; Answer [cup liquid identified as urine].) The pre-arrest door sequence is pleaded here only as chronology, not as a standalone claim: the federal complaint alleges that at about 00:56:09 an officer said "I think it's booze" before occupant contact, that officers looked through the windows with flashlights, and that at about

00:56:43 an officer opened the front passenger-side door while the occupant was still asleep, without consent. (Matter 32 FAC ¶¶ 14-16.) Those are allegations, not established facts, and native-video verification is outstanding. The knowledge-gate point is narrow and is the only use Petitioner makes of the sequence in this motion: observations first acquired by opening the door cannot supply the justification for opening it, and the pre-contact "booze" hypothesis dissipated as to the cup when the liquid was identified aloud as urine. Any unlawful-search theory arising from the entry belongs to the federal case, not to this Count 1 certification motion, and none is pleaded here.

The officers administered horizontal-gaze nystagmus testing (01:05:22–01:07:04) and a modified Romberg test (timer 01:08:02–01:08:45; report: 30 seconds estimated as 43 actual, eyelid flutters). One-leg stand and walk-and-turn were declined as "difficult" in the report; on the recording, at 01:10:23–01:10:30, Officer Melano identifies uneven freeway ground and says "I wouldn't do that one" — the report attributes the walk-and-turn choice/difficulty to the subject. (Pet. Ex. 6 at p. 3, line 18; Pet. Ex. 5 at 01:10:23–01:10:30.) The officer then gave the preliminary alcohol screening admonition, told Petitioner he was not required to take it, and told him arrest was within the officer's discretion; Petitioner declined, and was handcuffed and arrested. (Pet. Ex. 5 at 01:10:54, 01:11:15–01:11:33; Pet. Ex. 6 at p. 5; Order at p. 3.) A chemical-test admonition followed at 01:20 and was refused; a warrant affidavit was sworn at 02:30:22; warrant WAR913372 was signed by Judge Amy Sekany at 02:34:50; blood was drawn at 02:38 in Dublin by phlebotomist Aziza Ghaleb; Petitioner was booked at Santa Rita at 03:25 and held until November 5, 2024. (Pet. ¶¶ 38-42; Decl. ¶ 6; Production Ex. 5.)

B. CHP's report asserts what CHP's recording does not show — and the Answer admits the gap. CHP's arrest-investigation report states that Petitioner exhibited a "strong distinct odor of an alcoholic beverage," "slurred" speech, and a "very confused and disoriented" demeanor, and that a beverage was present. (Pet. Ex. 6.) CHP's dashcam recording contains no recorded statement by an officer that Petitioner's breath or person

smelled of alcohol, and Respondents admit neither officer stated aloud on the recording that they smelled alcohol and neither told Petitioner his speech was slurred, hesitant, or impaired. (Pet. Ex. 5; Answer.) Petitioner's recorded speech is clear and responsive: he pronounced his surname at 00:59:57, identified Livermore and read highway signs aloud, and answered location questions at 00:57:43, 00:57:49, and 01:00:41. (Pet. Ex. 5; Answer [correct Livermore identification, signs read aloud, surname spelled].) Petitioner's April 9, 2026 supporting memorandum identified the asserted contradictions by timestamp. (Pet. Ex. 3.)

Petitioner states these limits plainly, because the record requires them. The recording's silence on odor is not sensory disproof of odor; no independently verified audio assessment of speech is in the record; and the report's HGN observations have no transcript disproof. What the record does establish is narrower and still material: the officers never verbalized the odor or speech claims on the recording, the liquid examined was identified aloud as urine, and the walk-and-turn account in the report is contradicted by an officer's own recorded words about uneven ground. The Romberg timing in the report (30 estimated as 43 actual) agrees with the recorded timer and supplies no established "pass"; Petitioner does not claim one. The walk-and-turn discrepancy is drawn from the submitted transcript (Pet. Ex. 5/A); reconfirmation against the native MP4 is outstanding and should be completed before filing.

C. The toxicology, the warrant affidavit, and the driving element. Blood drawn at 02:38 was tested by Ascertain Forensics: ethanol 0.073 ± 0.004 g% — below the 0.08 per se level — inactive THC-COOH only (3.0 ng/mL), all other drugs negative. (Production Ex. 5, AGO 000029–000053.) Petitioner does not contend toxicology retroactively defeats probable cause, which is judged at arrest; the result is corroboration, not a retroactive adjudication, and the 0.08 per se theory fails on CHP's own lab work. The warrant affidavit sworn at 02:30:22 is thinner than the report: it omits the HGN details, the Romberg numbers, the one-leg-stand and walk-and-turn refusals, and the cup and can, stating only that field sobriety tests were "not perform[ed] as instructed or demonstrated." Petitioner does not ask the Court to find fraud on

these omissions; omissions that make an affidavit less inculpatory cut the other way, and the affidavit argument here is about the thinness of the probable-cause showing, not a standalone falsity claim. The driving element rests on admission, not observation: DS 367 leaves "driving observed" unchecked and the citation declares the violation "not committed in my presence, declared on information and belief." (Veh. Code § 40600.) The time of any impairment while driving remains unresolved on this record, and Petitioner does not claim otherwise.

D. CHP issued a section 851.6 certificate, and no criminal charge was filed. The certificate (Pet. Ex. 7) records release on November 5, 2024, and classifies the event as "a detention only, not an arrest" because there were "insufficient grounds for making a criminal complaint." The certificate document bears a May 12, 2025, 11:53 a.m. preparation footer; custody, release, and preparation are distinct facts, and Petitioner does not conflate them. No accusatory pleading was ever filed arising from the November 1, 2024 incident, a fact Respondents admit. (Pet. ¶ 42; Decl. ¶ 11; Answer.) Petitioner does not contend the certificate itself adjudicates probable cause, and no independent district-attorney no-case document is in the record; he relies on the certificate as part of CHP's own record bearing on the merits of the certification decision, and on the absence of charges as corroboration, not as proof of a crime.

E. The certification request and denial. On April 9, 2026, Petitioner submitted Form I-918, Supplement B to CHP with a supporting memorandum, the dashcam transcript, the arrest report, and the section 851.6 certificate. (Pet. ¶¶ 55-58, Exs. 2-8; Decl. ¶ 2.) Petitioner had already filed a citizen complaint and a POST complaint about the incident and provided CHP the dashcam transcript. (Pet. ¶¶ 7, 87; Decl. ¶ 12.) Eleven days later, CHP denied the request in a five-sentence letter stating that the incident "does not meet the standard of qualifying criminal activity" under section 679.10 or 8 U.S.C. section 1101(a)(15)(U)(iii). (Pet. Ex. 1.) The denial does not identify lack of helpfulness as a basis. (Ibid.; Order at p. 4.)

F. The October 23, 2026 production. CHP's Production of Documents, Set One (12

files: 8 PDFs, 4 videos; SHA-256-verified) produced the CAD incident log, beat sheet, CHP 202 / DS 367 / warrant-affidavit packet (AGO 000029–000053), both officers' CHP 415s, a privilege log withholding 10 items, and proof of service. The withheld items — the civilian-complaint file and two May 9, 2026 internal-review memoranda (one reviewing the MVARS video, one interviewing Officer Meza-Gonzales) — postdate the April 20, 2026 denial by nineteen days and prove nothing about what Captain Serrato knew in April; Petitioner does not use them for that purpose, and their contents are not pleaded here. They are noted only because the privilege fight (motion to compel / in-camera review) is a separate track from this motion's merits, which rest on the pre-denial record.

III. PROCEDURAL HISTORY

Petitioner filed the Verified Petition on May 29, 2026. By Order entered August 29, 2026 (notice of entry August 31, 2026), the Court overruled CHP's demurrer to the First Cause of Action under Code of Civil Procedure section 1085 and Penal Code section 679.10, sustained the demurrer without leave to amend as to the Second and Third Causes of Action, and sustained it with leave to amend as to the Fourth. The leave period expired September 20, 2026, and Petitioner did not amend; he proceeds on the First Cause of Action alone. Respondents Dutra and Paul were dismissed by stipulation on August 28, 2026. CHP and G. Serrato remain respondents to the surviving writ proceeding. Respondents filed their Verified Answer on October 12, 2026. Petitioner served Requests for Production, Set One, on September 16, 2026; CHP produced Set One on October 23, 2026. The merits hearing is set for January 8, 2027, at 9:00 a.m., in Department 25 (Reservation ID 958052306492, converted from reserved to scheduled). [Confirm the January 8 setting and the briefing timetable against the operative case-management order before filing.]

IV. LEGAL STANDARD

Code of Civil Procedure section 1085 authorizes mandate to compel performance of an act specially enjoined by law. (Code Civ. Proc., § 1085, subd. (a).) Mandamus generally does not control how an official exercises genuine discretion, but it may compel the official to exercise discretion under the correct legal standard and may correct an abuse of administrative discretion. (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442-443.) Section 1088 further permits issuance of a peremptory writ in the first instance when the application is made upon due notice; the notice must be at least ten days. (Code Civ. Proc., § 1088.) If a return raises a factual question essential to determination of the motion and affecting the parties' substantial rights, Code of Civil Procedure section 1090 permits the Court, in its discretion, to order that question tried; Petitioner requests a nonjury merits determination and does not request a jury. (Code Civ. Proc., § 1090.) No plain, speedy, and adequate remedy exists in the ordinary course of law: Penal Code section 679.10 provides no administrative appeal from CHP's certification denial, and an award of damages would not supply the certification, which must come from an authorized certifying official or entity. (Code Civ. Proc., § 1086.)

Penal Code section 679.10, subdivision (g)(1) provides that, upon the victim's request, a certifying official "shall certify victim helpfulness on the Form I-918 Supplement B certification" when the victim was a victim of qualifying criminal activity and has been, is being, or is likely to be helpful to detection, investigation, or prosecution. Section 679.10 expressly includes false imprisonment and unlawful criminal restraint among qualifying criminal activity and extends to state offenses whose nature and elements are substantially similar to the enumerated activity. (Pen. Code, § 679.10, subds. (c), (d); 8 U.S.C. § 1101(a)(15)(U)(iii).) Subdivision (h) supplies a rebuttable presumption of helpfulness where the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. Subdivision (k) provides that certification does not require an

investigation, charge, apprehension, prosecution, or conviction, and that separate-case cooperation cannot be a denial reason. (Pen. Code, § 679.10, subd. (k)(1), (k)(3)(H).) [Quote § 679.10, subds. (b), (h), and (k) from the official text in the filed version.]

The review standard is abuse of discretion. (Saleeby v. State Bar (1985) 39 Cal.3d 547, 562.) A particular result may be compelled where the governmental entity has no discretion left to exercise because the duty has become ministerial under the governing law. (Common Cause, supra, 49 Cal.3d at pp. 442-443; California Correctional Supervisors, 96 Cal.App.4th at 827.) Direct certification is therefore available only if the proven record establishes the statutory predicates and leaves no lawful reasonable alternative; otherwise the remedy is vacatur and remand for lawful reconsideration.

V. ARGUMENT

A. The existing record permits a finding that probable cause for the DUI arrest was lacking. Probable cause exists when the facts known to the arresting officer would persuade a person of reasonable caution that the person arrested committed a crime. (People v. Thompson (2006) 38 Cal.4th 811, 818; Order at p. 3.) Here, the Court has already held that if it credits Petitioner's factual showing concerning the absence of alcohol odor, the absence of impairment in speech and field sobriety testing, and false statements in the report, it could reasonably find probable cause lacking. (Order at p. 4.)

The recording is objective evidence bearing on that question. It contains no statement by an officer that Petitioner's breath or person smelled of alcohol; the liquid examined in the vehicle is identified on the recording as urine; and Petitioner's speech is recorded throughout the encounter. (Pet. Ex. 5; Decl. ¶¶ 7-10.) Petitioner performed the field sobriety tests the officers administered. The preliminary alcohol screening test was described to him by the officer as not required, and arrest followed refusal within about a minute. (Pet. Ex. 5 at

01:10:54, 01:11:15–01:11:33; Order at p. 3.) The strongest focused discrepancy in the filled record is the walk-and-turn: the report attributes the choice/difficulty to the subject, while the recording has Officer Melano identifying uneven freeway ground and saying "I wouldn't do that one." (Pet. Ex. 6 at p. 3, line 18; Pet. Ex. 5 at 01:10:23–01:10:30.) On the record as framed by the Court, Petitioner asks the Court to find the arrest lacked probable cause.

CHP's section 851.6 certificate supplies additional contemporaneous evidence. CHP documented that there were "insufficient grounds for making a criminal complaint," and no criminal charge followed. (Pet. Ex. 7; Decl. ¶ 11.) Petitioner offers that record as corroborative evidence, not as a substitute for the Court's independent determination of the probable-cause question, and not as an adjudication of it.

B. If the detention lacked lawful authority, the alleged conduct falls within or is substantially similar to qualifying criminal activity. False imprisonment is the unlawful violation of the personal liberty of another. (Pen. Code, § 236.) Penal Code section 146, subdivision (a) criminalizes a public officer's arrest or detention of a person against that person's will under color of legal authority but without lawful authority — an offense substantially similar in nature and elements to false imprisonment. Penal Code section 679.10 expressly identifies false imprisonment and unlawful criminal restraint as qualifying activity and extends to offenses substantially similar in nature and elements. (Pen. Code, § 679.10, subds. (c), (d).)

Petitioner does not ask this Court to convict any officer of a crime. He asks the Court to determine whether the conduct shown by the record constitutes qualifying criminal activity for the limited certification question. Section 679.10 does not require an investigation, charge, apprehension, prosecution, or conviction as a condition of obtaining certification. (Pen. Code, § 679.10, subd. (k) (1).) Petitioner deliberately does not plead perjury or any officer-false-statement theory as an independent qualifying crime: the knowledge element of

such a theory is not pinned in this record, and the report-vs-recording discrepancies are offered as evidence for the false-imprisonment showing, not as a standalone crime. No felonious-assault or obstruction theory is pleaded.

C. The existing record establishes helpfulness for purposes of the certification request. Petitioner reported the incident through a citizen complaint and a POST complaint, gave CHP a transcript of its own recording keyed by timestamp to the asserted contradictions in its report, and declares that no one from CHP or any other agency has ever asked him for information or assistance concerning this incident that he refused or failed to provide. (Pet. ¶¶ 7, 87; Pet. Ex. 3; Decl. ¶ 12.) CHP's April 20 denial did not identify helpfulness as a reason for denial. (Pet. Ex. 1; Order at p. 4.) And Respondents' Answer denies that any investigating entity ever requested information from Petitioner. (Answer ¶ 57.)

That denial helps, not hurts, the helpfulness predicate. Subdivision (h) presumes helpfulness where the victim has not refused or failed to provide information and assistance reasonably requested; it does not expressly make an actual prior request a prerequisite, and a reasonable assertion of unawareness prevents failure to cooperate from rebutting the presumption. (See Attorney General Information Bulletin DLE-2024-05, Pet. Ex. 14, at pp. 2, 5.) Where no request was made at all — as the Answer states — there can have been no refusal of one, and the presumption stands unrebutted. CHP's demurrer argument that the presumption never triggers absent an actual request is a preserved legal argument, but the statutory text and the Attorney General's bulletin can also be read to treat absence of refusal as satisfying the condition. Petitioner's refusals of the voluntary PAS and post-arrest chemical testing concern DUI testing during the incident, not a later request for assistance in detecting, investigating, or prosecuting alleged officer criminal activity, and are not automatically noncooperation. Separate-case cooperation cannot be a denial reason. (Pen. Code, § 679.10, subd. (k)(3)(H).) Helpfulness is pleaded here only as an element of Count 1, not as a revived standalone claim, and only because CHP has put cooperation at issue.

D. The April 20 denial letter, sentence by sentence. The denial is Petition Exhibit 1 (PDF p. 45). Its five sentences are addressed in order. Exact quotations are inserted from the scan in the filed version; the characterizations below are taken from the October 2 skeleton and are not a substitute for the quotations.

Sentence 1 — acknowledges materials. [INSERT VERBATIM QUOTATION — Pet. Ex. 1.] Acknowledgment does not establish the extent of actual review. What Captain Serrato actually reviewed is the subject of the pending RFP 8 decision-file track; this motion does not assert nonreview from the letter's silence, because missing discussion is an observation, not proof of statutory violation or nonreview.

Sentence 2 — states the threshold outcome. [INSERT VERBATIM QUOTATION — Pet. Ex. 1. Substance quoted in the September 30 draft: the incident "does not meet the standard of qualifying criminal activity" under section 679.10 or 8 U.S.C. section 1101(a)(15)(U)(iii).] The sentence states an outcome under qualifying/substantially similar activity but does not identify a particular offense or map its elements to the record. That omission is the legal-error core: the statute requires a determination about a qualifying crime, and a threshold conclusion without an offense or an elements mapping is not that determination.

Sentence 3 — recognizes general victim assistance. [INSERT VERBATIM QUOTATION — Pet. Ex. 1.] General recognition does not apply section 679.10, subdivision (h) to any pinned request, refusal, or failure, and the denial does not rest on helpfulness in any event.

Sentence 4 — describes CHP's role. [INSERT VERBATIM QUOTATION — Pet. Ex. 1.] The sentence contains no dashcam discussion — no engagement with the transcript,

the urine identification, the walk-and-turn contradiction, or the DS 367 gaps that were in the April 9 package.

Sentence 5 — expresses concern. [INSERT VERBATIM QUOTATION — Pet. Ex. 1.] The sentence contains no certificate discussion — no engagement with the section 851.6 certificate or the absence of charges that were likewise in the package.

The letter, taken as a whole, decides the threshold question without identifying the offense, without mapping elements, without applying subdivision (h), and without engaging the dashcam record or the certificate. That is legal error reviewable in mandate, whether the Court characterizes it as failure to apply the correct legal standard or as an abuse of discretion on the record presented. This motion does not revive any standalone explanation duty; it asks the Court to review the decision that was actually made, on the record that was actually before the decisionmaker.

E. CHP's best case, stated fairly and answered. CHP's totality case is not frivolous, and this motion does not pretend otherwise. The report records red, watery eyes; HGN clues (lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, onset before 45 degrees, lack of convergence); a Romberg estimate of 30 seconds against 43 actual with eyelid flutters; a 21-and-over wristband; a party admission and admitted driving from Oakland; an empty alcohol can; a vehicle seat adjusted to Petitioner's stature; pre-FST answers; and refusals of the PAS and chemical tests; with a later blood result of 0.073. Taken together, CHP will argue, those facts support reasonable cause notwithstanding the disputed facts.

The answer is the totality, correctly weighed. No officer observed driving or a moving vehicle; the driving element is admission-based and declared on information and belief. The odor and speech claims are paper-only and were never verbalized on the recording. The

walk-and-turn account is contradicted by an officer's own recorded words. The blood result is below the per se level and was drawn nearly three hours after the stop. No charge was ever filed, and CHP's own certificate reclassified the event as a detention for insufficient grounds. A court may credit the report's observations and still find that the arrest lacked probable cause on this record — which is exactly the finding the Court's demurrer order contemplated. Petitioner asks the Court to make it.

A.1. Arrest authority under Vehicle Code section 40300.5 is independently in issue. The arrest is recorded as made for Vehicle Code section 23152(a) per section 40300.5. That statute permits a warrantless DUI arrest without observed driving only where there is reasonable cause of preceding impaired driving AND an enumerated condition: a crash, a person in or about a vehicle obstructing a roadway, immediate apprehension necessary, immediate danger absent immediate arrest, or destruction or concealment of evidence absent immediate arrest. (Veh. Code § 40300.5.) No officer observed driving or a moving vehicle, so the arrest cannot rest on observation; it must rest on an enumerated condition. The only condition CHP could plausibly invoke on this record is obstruction of a roadway — and a freeway shoulder is not automatically a "roadway" (Veh. Code § 530: the portion of a highway improved, designed, or ordinarily used for vehicular travel). Whether any part of the Tesla intruded on live lanes, posed an obstruction, or created immediate danger is genuinely unresolved on the produced record; it requires the native forward video, location frames and road markings, and the officers' exact factual allegations, none of which establish obstruction on the current paper. Petitioner acknowledges CHP's best authority: Villalobos v. Zolin (1995) 35 Cal.App.4th 556 upheld a section 40300.5 arrest where a DUI-symptomatic person occupied a vehicle obstructing an interstate highway — direct defense precedent IF CHP shows obstruction of the traveled roadway, which must be distinguished on verified actual position, not rhetorical description. Petitioner's authorities are Mercer v. Department of Motor Vehicles (1991) 53 Cal.3d 753 and Music v. Department of Motor Vehicles (1990) 221 Cal.App.3d 841 (no observed movement and no statutory exception can invalidate a

warrantless DUI arrest), subject to the modern section 40300.5(c)-(e) exceptions those cases did not address. Petitioner does not assert section 40300.5 is categorically inapplicable because the vehicle was stopped; he asks the Court to find the enumerated condition unproved on this record, which is a further failure of lawful authority for the restraint — and therefore of the false-imprisonment predicate's "without lawful privilege" element — not a standalone claim.

F. Remedy. The primary rule is that mandate will not compel an official to exercise genuine discretion in a particular manner. But a particular result may be compelled where the governmental entity has no discretion left to exercise because the duty has become ministerial under the governing law. (Common Cause, supra, 49 Cal.3d at pp. 442-443.) Here, section 679.10, subdivision (g)(1) states that the certifying official "shall certify" when the statutory predicates are met. If the Court finds those predicates established on the record and no lawful reasonable alternative remaining, direct certification is the appropriate writ relief. (California Correctional Supervisors, 96 Cal.App.4th at 827.)

If the Court concludes that CHP retains a determination that must be made in the first instance, Petitioner alternatively requests a writ commanding CHP to set aside the denial and reconsider the April 9 request within 30 days in conformity with the Court's findings and Penal Code section 679.10 — including subdivision (h)'s helpfulness presumption and subdivision (k)'s rule that no charge, prosecution, or conviction is required — on the properly lodged record, and to file a return within 45 days so the Court can determine compliance. The Court retains jurisdiction until the return is filed and approved.

VI. CONCLUSION

Petitioner respectfully requests that the Court grant the motion, enter judgment on the First Cause of Action, and issue a peremptory writ commanding CHP to set aside its April 20,

2026 denial and complete, sign, and deliver Form I-918 Supplement B within 30 days after service of the writ. In the alternative, Petitioner requests a writ directing CHP to set aside the denial, reconsider the request within 30 days in conformity with the Court's findings and Penal Code section 679.10, and file a return within 45 days.

Dated: [DATE — to be inserted on filing]

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

SUPPORTING PAPERS NOTE (not part of the motion; remove before filing)

Declaration of Brendan Ngehsi Newanforbi (executed September 30, 2026): supplement before filing with paragraphs covering the October 12 Answer admissions/denials (including ¶ 57), the October 23 production Bates, and the toxicology result.

Proposed Judgment and Proposed Peremptory Writ (September 30, 2026 versions carry direct certification only): update to carry BOTH primary and alternative relief, tracking § VI.

Proof of service on Respondents' counsel (Vanessa Ing, CA DOJ) to be completed on filing.

Verify before filing: verbatim April 20 letter quotations (§ V.D); § 679.10(b), (h), (k) quotations from official text (§ IV); August 29 Order quotations against the stamped Order; January 8 setting and briefing timetable; video playback access for the Court (September 8 lodging ambiguity); CM-110 / November 4 CMC stipulation status; native-MP4 reconfirmation of the walk-and-turn sequence (§§ II.B, V.A).

Formatting for filing: conform the memorandum to CRC 3.1113(d) (15-page limit for an ordinary opening memorandum; table of contents and table of authorities if over 10 pages) and 3.1113(k) (exhibit citations by letter/number, page, and paragraph/line, plus video timecodes); lodge and serve proposed orders/judgments separately rather than attaching them to the memorandum (CRC 3.1113(m)). This draft is written in full; the filed version must be checked against the page limit in pleading-paper formatting.

Procedure note: this draft proceeds under CCP § 1085 with § 1090 for any disputed-fact procedure, because the August 29 demurrer order fixed Count 1 under § 1085. CCP § 1094 (administrative mandate) was flagged in the companion file 05-PEREMPTORY-WRIT-MERITS-BRAINSTORM.md as a question; it is not adopted here, because the operative order is a § 1085 order.